

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

HMM CO., LTD. F/K/A HYUNDAI MERCHANT MARINE CO.,
LTD., *Respondent*.

DOCKET NO. 24-23

Served: May 2, 2025

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

SCHEDULING ORDER

On April 29, 2025, the parties filed a joint status report and proposed discovery schedule. Dkt. 20. The discovery schedule proposed by the parties completes discovery on September 12, 2025, within five months of service of Respondent's answer on April 14, 2025. The Commission's rules require completion of discovery within 150 days of service of the answer, and therefore, the parties' proposed schedule complies with the rule. 46 C.F.R. § 502.141(g). The parties have expressed concern about their ability to complete discovery in this timeframe, citing the potentially large volume of electronically stored information (ESI), number of custodians, number of disputed charges (over 96,000), and the impact of time difference between counsel in the United States and witnesses in Korea on deposition schedules. Joint Status Report 2-3.

Joint Status Report. In light of these concerns, the parties propose a status report to update the presiding officer on the status of discovery. I have included this status report in the schedule below. The status report must describe: the number of custodians searched by each party and any custodians remaining to be searched; the volume of documents/ESI returned from those searches; the volume of documents/ESI reviewed; the volume of documents/ESI produced; any obstacles encountered in reviewing or producing documents/ESI; anticipated number of depositions for each party and any obstacles related to scheduling those depositions. The report may also include any other information relevant to the discovery schedule.

To make the discovery process more efficient, the parties are encouraged to agree to limitations on discovery and stipulations of facts. The parties are also encouraged to review the Initial Order for instructions related to confidential information. For example, parties may not mark entire depositions as confidential, so they should ask questions that may require confidential responses together, typically at the end of the deposition.

Prehearing Conference. Complainant has requested an oral hearing. Am. Compl. ¶ 98, Dkt. 17. Respondent takes no position on this request. Answer ¶ 98, Dkt. 18. Under normal circumstances, cases such as these are resolved following briefing and, pursuant to 46 C.F.R. §

502.62(a)(5), “[t]he presiding officer will determine whether an oral hearing is necessary.” I have included tentative dates for the filing of prehearing statements and for holding a prehearing conference in the schedule below. 46 C.F.R. § 502.209. After reviewing the prehearing statements or holding the prehearing conference, if it appears that there are no issues that would make a hearing necessary, I will set a briefing schedule. Otherwise, the hearing date will be set at the prehearing conference. Counsel who will conduct the hearing must attend the prehearing conference, and must have authority to enter into stipulations, admissions, and agreements regarding all matters that the participants may reasonably anticipate may be discussed.

Joint Prehearing Statement, Objections to Exhibits, and Confidential Treatment.

Prehearing statements must comply fully with 46 C.F.R. § 502.210. Counsel who will conduct the hearing must meet no later than the date set forth below for the purpose of discussing the topics set forth in 46 C.F.R. § 502.210(b) and to prepare, to the extent possible, a Joint Prehearing Statement. If there are elements of the statement to which the parties do not agree, the parties should describe their respective positions in the jointly prepared document.

At this meeting, the parties must exchange witness lists and all documentary exhibits they may offer at the hearing. The parties must also designate depositions, or portions of depositions, that they plan to offer into evidence in the Joint Prehearing Statement. See 46 C.F.R. § 502.149. Objections, if any, by a party to the exhibits submitted by any other party must be made at the time of submission of the Joint Prehearing Statement. A party raising an objection to an exhibit must attach a copy of the exhibit to which the objection is made.

The rules governing Confidential Material set forth in the Initial Order, Dkt. 9, are applicable to hearing exhibits. Requests for confidential treatment of hearing exhibits must be made by motion in accordance with the Initial Order, and the motion must be submitted with the Joint Prehearing Statement. If any party seeks confidential treatment of anticipated testimony, the motion for confidential treatment must address that testimony as well. 46 C.F.R. §§ 502.5, 502.208.

Alternative Dispute Resolution. The parties indicated that they have not yet contacted the Commission’s Office of Consumer Affairs and Dispute Resolution Services (CADRS) because it would be more beneficial to do so after the briefing is completed on Complainant’s motion to dismiss Respondent’s counterclaim. The parties must jointly contact CADRS by the date set forth below for the purpose of scheduling a preliminary conference, which may be set for a mutually agreeable date following the anticipated conclusion of briefing on the motion to dismiss the counterclaim. 46 C.F.R. § 502.64(a).

The parties are hereby **ORDERED** to follow this schedule:

May 15, 2025	Parties must contact CADRS by this date to schedule preliminary conference (see above)
May 20, 2025	Service of requests for production and fact interrogatories
June 20, 2025	Joint Status Report due (see above)
July 9, 2025	Complete document production

August 11, 2025	Complete fact depositions
August 12, 2025	Expert-discovery phase begins
September 12, 2025	Discovery closed
October 3, 2025	Meeting to discuss Joint Prehearing Statement must be held by this date; hearing exhibits must be exchanged (see above)
October 24, 2025	Joint prehearing statement, objections to exhibits, motions <i>in limine</i> , motions for confidential treatment, and any other motions respecting the conduct of the hearing are due (see above)
November 7, 2025	Prehearing conference to be held at 800 North Capitol Street, NW, Washington, DC at 10:30 AM

The parties are reminded that a “scheduling order ‘is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.’” *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding. It is therefore in the best interest of the parties to proceed expeditiously.

Any filing submitted without page numbers, including on exhibits, may be rejected. Parties must also follow the instructions in the Initial Order, including the requirements for submitting confidential information. All filings “must be filed with the Secretary, Federal Maritime Commission.” 46 CFR 502.2(a). This filing requirement applies to both the confidential and public versions of filings. The Commission has waived paper filing requirements and permitted filings by email. Therefore, filings of confidential versions of documents, as well as the public version, should be sent by email to secretary@fmc.gov with a courtesy copy to judges@fmc.gov. Confidential filings should be clearly marked on the subject line, in the email, and on the document itself. Parties may be required to refile any documents that do not follow the requirements above or in the Initial Order.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with

opposing counsel copied. Word-processing versions should not be submitted to the Office of the Secretary.

ALEX
CHINTELLA

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ALEX CHINTELLA
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Alex M. Chintella
Administrative Law Judge